The Kansas-Nebraska Act

U.S. Congress (drafted by Sen. Stephen A. Douglas) · May 30, 1854

Source: Kansas-Nebraska Act (May 30, 1854), text via the U.S. National Archives, Milestone Documents. Public domain.

Written by Senator Stephen Douglas to organize the Nebraska and Kansas territories — and to clear a path for a transcontinental railroad — the act let settlers decide the slavery question by "popular sovereignty." Because it repealed the Missouri Compromise line of 1820, it reopened the fight over slavery in the territories, triggered "Bleeding Kansas," shattered the party system, and hastened the birth of the Republican Party and the coming of the Civil War.

Connect: Why did applying "popular sovereignty" to Kansas and Nebraska prove so much more explosive than its supporters expected?

Key Passages

Admission with or without slavery

created into a temporary government by the name of the Territory of Kansas; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as their Constitution may prescribe at the time of their admission

Repeal of the Missouri Compromise

except the eighth section of the act preparatory to the admission of Missouri into the Union, approved March sixth, eighteen hundred and twenty … being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void

Popular sovereignty

it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Sectional tension after the Compromise of 1850, plus Douglas's push to organize the Nebraska Territory for a transcontinental railroad through the central route.
Intended Audience *Who was the source written for?*	Congress and the settlers of the new Kansas and Nebraska territories, along with Northern and Southern voters watching the slavery question.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Senator Stephen A. Douglas, an Illinois Democrat who favored popular sovereignty and needed Southern votes; abolitionists and enslaved people had no voice in it.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ practice (A·C·E): Explain ONE effect of the Kansas-Nebraska Act on sectional tensions.
2. How did “popular sovereignty” differ from the way the Missouri Compromise had handled slavery in the territories?
3. Why did this act accelerate the collapse of the Second Party System and the rise of the Republicans?

The Kansas-Nebraska Act

33rd Congress · May 30, 1854

Source: Kansas-Nebraska Act (May 30, 1854), text via the U.S. National Archives, Milestone Documents. Public domain. Non-contiguous passages are separated by [. . .]; shorter cuts inside a passage are marked with an ellipsis (. . .).

> Senator Stephen Douglas's act let settlers in Kansas and Nebraska decide slavery by "popular sovereignty," repealing the Missouri Compromise line. It triggered a rush of pro- and anti-slavery settlers and the violence of "Bleeding Kansas."

Section 1 — the Territory of Nebraska

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That all that part of the territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this act, to wit: . . . be, and the same is hereby, created into a temporary government by the name of the Territory Nebraska; and when admitted as a State or States, the said Territory or any portion of the same, shall be received into the Union with or without slavery, as their constitution may prescribe at the time of the admission:

[. . .]

Section 19 — the Territory of Kansas; admission with or without slavery

SEC. 19. And be it further enacted, That all that part of the Territory of the United States included within the following limits, except such portions thereof as are hereinafter expressly exempted from the operations of this act, to wit, . . . be, and the same is hereby, created into a temporary government by the name of the Territory of Kansas; and when admitted as a State or States, the said Territory, or any portion of the same, shall be received into the Union with or without slavery, as their Constitution may prescribe at the time of their admission:

[. . .]

Section 32 — popular sovereignty and repeal of the Missouri Compromise

That the Constitution, and all laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory of Kansas as elsewhere within the United States, except the eighth section of the act preparatory to the admission of Missouri into the Union, approved March sixth, eighteen hundred and twenty, which, being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States: Provided, That nothing herein contained shall be construed to revive or put in force any law or regulation which may have existed prior to the act of sixth of March, eighteen hundred and twenty, either protecting, establishing, prohibiting, or abolishing slavery.

Words to know

to wit — namely; that is to say

prescribe — set down as a rule

locally inapplicable — not fitting the local situation

non-intervention — Congress staying out of the slavery question in states and territories

inoperative and void — no longer in force; canceled

domestic institutions — a territory's internal social arrangements, here meaning slavery